

## **COM-16-002: Disputes of Final Findings**

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Date

April 20, 2016

To

All Approved Insurance Providers

All Risk Management Agency Field Offices

All Other Interested Parties

From

Heather Manzano, Deputy Administrator for Compliance /s/ Heather Manzano

4/20/2016

Subject

Disputes of Final Findings

### **Background**

7 C.F.R. § 400.169 outlines the appeals process for compliance matters. If the approved insurance provider (AIP) believes that the Regional Compliance Office rendered a final finding not in accordance with applicable laws, regulations, or FCIC approved policy and procedure, the AIP may request the Deputy Administrator for Compliance to make a final administrative determination. This memorandum provides the means to request a final administrative determination.

### **Action**

The most preferred method to request a final administrative determination (FAD) by the Deputy Administrator for Compliance is through the Compliance Activities and Results System (CARS). To send a request, the AIP should access CARS and navigate to the case policy they are disputing. The AIP should then go to the case policy document library and upload the FAD request documents as they would any other documents. Before saving, set the **Document Category to Disputes: Request**

**Disputes.** This will generate an email to RMA giving it access to all the policy documents the AIP uploaded to the document library supporting the request for a FAD. Upon receiving the email, RMA will confirm receipt of the documentation submitted by the AIP and upload an acknowledgement memo to the AIP in CARS.

AIPs may also submit requests for a FAD to RMA by electronic mail to the following email address: [Final.Finding.Appeals@rma.usda.gov](mailto:Final.Finding.Appeals@rma.usda.gov).

This Informational Memorandum does not change existing policy or procedure, or existing AIP responsibilities for filing a request for a FAD with RMA in accordance with 7 C.F.R § 400.169.

**DISPOSAL DATE:**

Until Rescinded